

2:00 PM LINE 5

26-CIV-00606 SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY VS. MAXIM
WORLD USP LLC

SHC HALF MOON BAY, LLC, A DELAWARE LIMITED LIABILITY COMPANY MAXIM WORLD USP LLC	DANIELLA MIKHAEL-FARD LYN R AGRE
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Lyn R. Agre's Motion to be Relieved as Counsel

TENTATIVE RULING:

On August 5, 2026, counsel for Maxim World USP LLC appeared ex parte, asking to be relieved. At the ex parte hearing, counsel represented to the court that counsel had notified the client of the ex parte using what counsel knew to be the client's current address and email.

The Court nevertheless denied the ex parte request, but issued the following Order:

"The court *sua sponte* made and granted a motion shortening time on a motion to be relieved. The motion shall be filed on August 6, 2026 and comply with Rule 3.1362 and utilize forms MC-51, 52 and 53. Any opposition shall be filed by August 12, 2026 at 1 p.m. Any reply may be filed by August 14, 2026 at 1 p.m. Courtesy copies of all filings related to this motion must be emailed to Dept11@sanmateocourt.org."

While it does not appear that counsel provided the necessary courtesy copies, counsel otherwise complied with this Order and the Court CONTINGENTLY grants the motion to be relieved (effective upon the filing of the proof of service of the signed order). The court notes that counsel filled out the MC-52 incorrectly in that counsel does not explain in 3(b)(1)(d) HOW counsel confirmed that the email and address were current. Nevertheless, as noted above, counsel assured the court at the ex parte hearing that it was. Accordingly, the court Orders that counsel file a brief supplemental declaration confirming HOW counsel knows those addresses are current. Assuming that contingency is satisfied, the Court will execute the MC-53 once a courtesy copy of that filed declaration is emailed to Dept11@sanmateocourt.org.

2:00 PM LINE 6

23-CIV-00365

MARGARET FRIED VS. GOPI MATTEL

MARARET FRIED
GOPI MATTEL

JEFFREY A. FELDMAN
PRO SE

Defendant Gopi Mattel's Motion to Compel Compliance with Deposition Subpoena; and Opposition to Non-Parties' Request for Monetary Sanctions

TENTATIVE RULING:

Initially, the Court notes defendant provided the improper address for the hearing because the matter was reassigned to the Honorable David A. Silberman, Department 11, effective May 11, 2026. Department 11 is located at the Central Branch Courthouse, Courtroom G, 800 North Humboldt Street, San Mateo, CA 94401. (See Cal. Rules of Court, rule 3.1110 [the Notice "must specify" the location of the hearing].) The Court notes the most recent filings associated with the instant motion have corrected the judicial officer and location in the caption therefore the Court finds the error harmless.

Defendant Gopi Mattel's motion to compel compliance of non-parties Aria Khalili and his company, Paria LLC ("Pariax") with a deposition subpoena for personal appearance and production of documents and things issued by this Court on September 3, 2025 was withdrawn by defendant on August 11, 2026.

However, Non-parties Pariax LLC's and Aria Khalili opposed the motion, requested sanctions pursuant to Code and continues to pursue them. That request is DENIED. The trial court is required to award monetary sanctions against any person "who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.480, subd. (j), italics added.) This section does not provide a statutory basis to order sanctions because the motion was withdrawn. That is also true of Code of Civil Procedure Section 2023.010(h). The Court would have authority to award sanctions under Section 2023.030(a) in the abstract, but it does not conclude based on the showing made that Defendant was engaged in the misuse of the discovery process. It appears that Defendant was pursuing discovery that he believed was appropriate, but that he did it in an inept way. And as a consequence, he is now foreclosed from pursuing the evidence in discovery.

The Court is not condoning Defendant's conduct. In addition to the inept and discourteous way in which he pursued the discovery, the fact that it resulted in a continuance of the trial and his failure to respond to Pariax's attempts to resolve the dispute, the Court notes with particular concern Defendant's acknowledged mis-citation of legal authority for his underlying motion and his statement that he has "adopted a practice of independently verifying every legal authority before filing." (Declaration of Gopi Mattel iso motion to withdraw filed August 11, 2026, ¶ 5.) This is a requirement, not a practice to adopt: legal standards require that courts apply the rules of practice and procedure equally to self-represented litigants and represented litigants alike. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985 [a party's election to act as his own attorney does not entitle him to lenience as to the rules of practice and procedure].)
